

Section M - Evaluation Factors for Award (Two-Step)

1.0. Award Procedures

1.1 Contract award will be made utilizing the two-step sealed bidding procedures described in Federal Acquisition Regulation (FAR) Subpart 14.5, as supplemented in the Defense Federal Acquisition Regulation Supplement (DFARS) and Department of the Air Force Federal Acquisition Regulation Supplement (DAFFARS). These regulations are available electronically on Acquisition.Gov at <https://www.acquisition.gov/>. Step-one consists of the request for, submission, evaluation, and (if necessary) discussion of a technical proposal. No pricing is involved. Step-two involves the submission of sealed priced bids by those who submitted acceptable technical proposals in step one. A contract award will be made to the Bidder who is determined technically acceptable in step-one with the lowest evaluated price in step-two, considering only price and the price-related factors specified elsewhere in the solicitation IAW FAR 52.214-10 - Contract Award-Sealed Bidding.

1.1.1. The Contracting Officer (CO) may proceed directly with step two if there are sufficient acceptable proposals to ensure adequate price competition under step two, and if further time, effort and delay to make additional proposals acceptable and thereby increase competition would not be in the Government's interest. If this is not the case, the contracting officer shall request bidders whose proposals may be made acceptable to submit additional clarifying or supplementing information.

1.2. The Government intends to select one contractor for this acquisition.

1.3. The Government may reject individual bids IAW FAR 14.404-2

1.4. Step One – Technical Proposal

1.4.1. Correction of Potential of Bids

In step one, the Government will consider the correction potential of any technical proposal. If a Mistake in Bid is not considered correctable IAW FAR 14.407-3, or if the amount and/or complexity of the corrections needed to meet the Government's requirement requires a major proposal revision, the Bidder will be categorized as unacceptable and may be eliminated from the competition.

1.4.2. Requests for Additional Information

The Government intends to proceed to step two without requesting further information but reserves the right to verify offerors' technical proposal and conduct discussions if necessary. Therefore, it is imperative that Bidders submit their best technical proposals initially. The contracting officer may proceed directly with step two if there are sufficient acceptable proposals to ensure adequate price competition under step two, and if further time, effort and delay to make additional proposals acceptable and thereby increase competition would not be in the Government's interest. If this is not the case, the contracting officer shall request bidders whose

proposals may be made acceptable to submit additional clarifying or supplementing information.

1.4.3. Solicitation Requirements (Terms and Conditions)

Bidders are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, delivery, and Statement of Work (SOW) requirements in addition to those identified as technical subfactors. Failure to comply with the terms and conditions of the solicitation may result in the Bidder being ineligible for the award. Bidders must clearly identify any exception to the solicitation terms and conditions and must provide complete supporting rationale. The Government reserves the right to determine any such exceptions unacceptable, and the proposal, therefore, is ineligible for award.

1.4.4. Site Visits

The Government may conduct site visits during step one to gather information for judging the Bidder's potential for correcting deficiencies, allow inspection of government property, or other areas useful in assisting the offerors with their understanding of the requirements. If conducted, the results will be assessed under the applicable technical subfactors and will be used to validate and confirm the Bidder's written proposal.

1.5. Step Two – Pricing Proposal

In the second step, only bids based upon technical proposals determined to be acceptable, either initially or as a result of submission of further information, will be considered for awards. In step two, the award will be made to the responsible bidder whose bid, conforming to the solicitation, will be most advantageous to the Government, considering only price and the price-related factors specified elsewhere in the solicitation IAW FAR 52.214-10 - Contract Award-Sealed Bidding.

1.6 Only bids based upon technical proposals from step one that are determined to be acceptable, either initially or as a result of discussions, will be considered to continue to step two and for resultant award.

2.0. Step One – Technical Proposal Evaluation

2.1. Technical Factor 1. The Technical evaluation will be based on each's offeror's approach for meeting the technical requirements listed below. The evaluation focuses on the technical approach as described in each offeror's technical volume. The technical evaluation does not consider price. Each subfactor within the technical factor will receive one of the ratings described below based on the criteria listed below. Individual subfactor ratings will be used to determine the overall technical acceptability of each offeror. To be determined technically acceptable at the factor level, the Offeror must be rated acceptable in each subfactor. A single deficiency within a subfactor will result in an unacceptable rating for that subfactor. A final unacceptable subfactor assessment will determine an overall technical unacceptable rating, and therefore, un-awardable. Only those proposals determined to be technically acceptable, either initially, or as a result of discussions, will be considered for step two.

Technical Rating	Description
Acceptable	Proposal meets the requirements of the solicitation.
Reasonably susceptible of being made acceptable	Proposal does not meet the requirements of the solicitation. The amount and/or complexity of the corrections needed to meet the Government requirement does not require a major proposal revision.
Unacceptable	Proposal does not meet the requirements of the solicitation.

2.2. **Technical Subfactor 1, Capability and Management:** This subfactor is met when the offeror sufficiently demonstrates and describes how the offeror will meet the capability and management requirements to complete the construction and administrative requirements with little potential for disruption of schedule, increased price, or degradation of performance. The evaluation will include the offeror's proposal to meet the following:

2.2.1. Sufficient description of commitment to support an on-site management team, including a sole source responsibility for both design and construction of this project. IAW Section 1.3. Contractor Personnel Requirements and 3.3 Design Program Manager within the SOW.

2.2.2. Sufficient approach to manage, supervise, and coordinate all subcontractor's work and state who in the organization is responsible for this management and coordination. IAW all Section 1.3.

2.2.3. Sufficient description of how warranty support, unforeseen site conditions, design errors, etc., will be handled by your organization. The responsible offeror shall meet warranty requirement specification listed in the Warranty of Construction Clause IAW FAR 52.246-21. The offeror will meet unforeseen site condition requirement specification listed in the Differing Site Condition Clause IAW FAR 52.236-2.

2.2.4. Sufficient description of your team list of the primary points of contact. The responsible offeror shall meet the requirement specification IAW Section 1.3. Contractor Specific Requirements within the SOW.

2.3. **Technical Subfactor 2, Schedule and Planning:** This subfactor is met when the offeror sufficiently demonstrates and describes how the offeror can schedule and plan the construction project that will meet or improve the mandatory completion date with little potential for disruption of schedule, increased price, or degradation of performance. The evaluation will include the offeror's proposal to meet the following requirement specification IAW all of Section 3.3 of the SOW.

2.3.1. Sufficient construction schedule that meets the mandatory completion date stated in the Solicitation, Offer and Award SF1442 Request for Proposal (RFP). The schedule shall demonstrate a reasonable and realistic sequence of activities which represent all work to be performed throughout the entire order performance period, while considering the major work elements from the detailed price proposal, as well as submittal reviews, mobilization, material

delivery times, anticipated weather delays, and final inspection/closeout. The responsible offeror shall meet requirement specification IAW Section 3.3 of the SOW.

2.3.2. Sufficient detail within the schedule that considers submittals, milestones (such as final inspections), and construction related permits/requests (such as Outage/Closure Requests or Excavation Permits) that will require longer lead times for Government coordination/approval. The responsible offeror shall meet requirement specification listed in Section 3.3 of the SOW.

2.3.3. Sufficient detail within the schedule that provides specific timelines for staging area approvals, airfield waivers, outage requests and other Government approvals as provided in the SOW Section 3.3.3 in table listed as “Delivery Schedule & Submittals”.

2.4. The technical rating reflects the evaluation of the acceptability of the offeror’s technical approach for meeting the government’s requirement. The offeror’s proposal shall be evaluated to determine whether the proposal is acceptable or unacceptable, using the ratings and descriptions outlined in the table above. One technical rating will be assigned to each technical subfactor. In order to be considered awardable, there must be an “acceptable” rating in every subfactor.

3.0. Step Two – Pricing Proposal Evaluation

3.1. Price proposals will be evaluated for (1) reasonableness to include completeness, (2) balanced pricing, and (3) realism. Offerors whose price is determined to be unreasonable will not be considered for award. Additionally, an offeror’s price may be rejected, if it contains unbalanced pricing to the extent, it poses an unacceptable risk to the government.

3.2. The Government intends to only evaluate the proposed pricing of the apparent lowest priced bidder. The Government may evaluate proposed prices submitted by other than the apparent lowest priced bidder to ensure there is adequate price competition, price reasonableness or price realism. If the apparent lowest priced bidder is deemed unawardable for any reason, the Government will proceed to evaluate the next apparent lowest bidder, continuing this process until an awardable bid is identified.

3.3. Pricing proposals will be reviewed for compliance with the ITO.

3.4. The TEP will be calculated as the sum of the offeror’s proposed prices for all CLINs and all options (as applicable). TEP will be used for evaluation purposes only. Evaluation of options shall not obligate the government to exercise such options.

3.5. The proposed prices will be evaluated for reasonableness to include completeness. Analysis of price proposals will be performed using one or more of the techniques defined in FAR 15.404-1(b)(2) in order to determine price reasonableness. Reasonableness must represent a price to the government believes a prudent person would pay in the conduct of competitive business. Normally, price reasonableness is established through adequate price competition but may also be determined through price analysis techniques as described in FAR 15.404-1(b)(2). The proposal will be evaluated for completeness to ensure the offeror has proposed pricing for

all CLINs except for those labeled not separately priced (NSP).

3.6. Offerors' proposals will be reviewed for balanced pricing. The government will evaluate any supporting information provided by the offeror explaining variances that appear unbalanced. Evaluated offers that are determined to be unbalanced may be deemed ineligible for award by the CO if a determination is made that lack of balance poses an unacceptable risk to the government. Unbalanced pricing exists when, despite an acceptable total price, the price of one or more-line items is significantly over or understated as demonstrated by application of price analysis techniques, such that:

- a) There is reasonable doubt the offer would result in the lowest overall price to the government, even though it is the lowest priced offeror; or
- b) The offer is so grossly unbalanced; its acceptance would be tantamount to allowing an advanced payment.

3.7. Proposed prices will be evaluated for price realism. To be realistic, the proposed price must demonstrate an adequate understanding of and consistency with the requirement and must ensure the price does not pose an unacceptable risk to performance. All documentation submitted to support price realism will be considered when making a determination of price realism. To evaluate price realism, the Government intends to use one or more of the price analysis techniques described in FAR 15.404-1(b)(2). The Government may also use other evaluation techniques, as needed."

3.8. As applicable, the offeror's proposal will be evaluated for compliance with DFARS 236.606-70, Statutory Fee Limitation, if the contract includes architect-engineer services for the preparation of designs, plans, drawings and specifications.

3.9. If requested by the CO, data other than certified cost and pricing data shall be evaluated to support a determination of reasonable and balanced pricing. This information will only be requested if all other sources have been insufficient to support a determination of reasonable and/or balanced pricing.

3.10. All proposed dollar amounts shall be rounded to the nearest cent. All rates proposed as a percentage shall be rounded to four decimal places to the right of the decimal point. If any pricing proposal deviates from this format, the government will apply the specified format to determine the extended pricing and Total Evaluated Price (TEP). Compliance with instructions regarding rounding will be verified during evaluation.

4 Order Volume

4.0. Proposal will be evaluated for (1) SF 1442 signed to include any amendments if applicable; (2) Exceptions for acceptability; (3) Ensure contractor has all SF1442 fill-in(s) appropriately completed; (4) Receipt of Bid guarantee bond; (5) Acceptable proposal validity; (6) SAM.Gov annual representation and certification are current with no exemptions; and (7) Current assessment in SPRS web site.